

Nanda Pramod @ Deepak Sonwane vs Pramod @ Deepak Karbhari Sonwane on 5 January, 2019

Author: T.V. Nalawade

Bench: T.V. Nalawade

(1)

FCA No. 42/2018

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
BENCH AT AURANGABAD

FAMILY COURT APPEAL NO. 42 OF 2018.
WITH
CIVIL APPLICATION NO.5600 OF 2018.

Nanda w/o Promod @ Deepak
Sonwane

Age : 37 years, occu.: housewife
R/o C/o Sitaram Raibhan Jagtap,
Galli No.1, Nagsen Nagar,
Osmanpura, Aurangabad.

Appellant.

Versus

Promod @ Deepak Karbhari Sonwane
Age : 41 years, occu.: business
R/o Ariant Nagar, G-14, Near Jain
Mandir, Jawahar Colony,
Aurangabad.

Respondent.

Smt. Vidya Dhorde , Advocate for the appellant.

Mr. R.H. Wagh, Advocate for the respondent.

CORAM : T.V. NALAWADE AND
SUNIL K.KOTWAL, JJ.

Judgment reserved on : 31 January 2019.
Judgment pronounced on : 05 February 2019.

JUDGMENT (Per Sunil K. Kotwal).

1. This appeal is directed against the judgment and decree for divorce passed by the Judge, Family

Court, Aurangabad in Petition No.A-142/2016. Appellant is the original respondent / wife and the present respondent is original petitioner / husband. To avoid confusion, hereinafter the appellant is referred to as the "respondent/wife" and the present respondent is referred to as the "petitioner / husband".

2. The facts, in nutshell, are that the petitioner / husband filed petition for divorce under Section 13 (1) (ia) and (ib) of the Hindu Marriage Act i.e. on the ground of cruelty and desertion. In that proceeding, the undisputed facts in between the parties are that the marriage of this couple was performed on 07.03.2002, in accordance with the custom and rites. As a result of this wedlock, this couple was blessed with two daughters. Petitioner / husband filed Petition for Restitution of Conjugal Rights bearing Petition No. A-272/2004 before the Family Court, Aurangabad and in that matter on 20.11.2004 compromise took place in between the parties and again petitioner / husband and respondent / wife cohabited together at Aurangabad. Since 12.06.2008 the petitioner / husband and the respondent / wife are living separate from each other. Both the daughters are residing with the respondent / wife. Subsequently the respondent / wife filed application under the provisions of Protection of Women from Domestic Violence Act, 2005 ("D.V. Act" for short) and in that proceeding maintenance is awarded in favour of respondent / wife and her two daughters.

3. Contention of the petitioner / husband is that, since beginning his the wife subjected him to cruelty in the following manner :-

(a) On 12.07.2002 behind back of the petitioner/husband, his wife terminated her four months' pregnancy in the hospital of Dr. Pansare at Osmanpura, Aurangabad.

(b) Respondent / wife started quarreling with her husband on trifling reasons and she was not performing household work and she behaved with her husband and relatives arrogantly.

(c) Respondent / wife insisted for living separate from the parents of her husband.

(d) Respondent / wife frequently visited her parental home and stayed there, as per her sweet wishes.

(e) Respondent / wife used to say that she did not like her husband and she was not willing to cohabit with her husband.

(f) Respondent / wife lodged false complaint against the petitioner / husband to Women Redressal Forum, Mill Corner, Aurangabad on 19.10.2002.

(g) On 21.03.2004 respondent / wife and her brother assaulted the petitioner / husband by sharp cutting weapon.

(h) Respondent / wife was reluctant to have sexual relations with her husband.

4. Regarding the ground of desertion, contention of the petitioner / husband is that, since 12.06.2008 the respondent / wife is living separate from her husband without reasonable cause.

5. Respondent / wife filed Written Statement (Exh.10) and denied all the allegations of mis-behaviour or cruelty to her husband. She has also denied all the allegations of terminating her pregnancy on 12.07.2002 behind the back of her husband. She has admitted that on 19.02.2002 she submitted complaint against her husband to Women Redressal Forum, Aurangabad and again started cohabiting with her husband at his village Wasadi, Taluka Kannad. She has also admitted her stay with her husband at Dada Colony, Kailas Nagar, Aurangabad, but denied the other allegations levelled by her husband. According to respondent / wife, she was willing and even today she is willing to cohabit with her husband. However, as the father of her husband is retired Police Officer, at his instance her husband subjected her to physical and mental cruelty. According to respondent / wife, this petition is filed to avoid the payment of maintenance allowance awarded by the Court under D.V. Act.

6. After hearing learned Counsels for both the parties and after considering the evidence placed on record, the learned Judge, Family Court held that the respondent / wife subjected her husband to cruelty and deserted him without reasonable cause for more than two years preceding the date of filing of petition for divorce. In the result, decree for divorce was passed.

7. Heard Smt. Vidya Dhorde, learned Counsel for the respondent / wife and Shri R.H. Wagh, learned Counsel for petitioner / husband.

8. Learned Counsel for the respondent / wife submits that the evidence placed on record by petitioner / husband is not sufficient to prove the allegation of cruelty. She submits that as this couple was blessed with two daughters, contention of the husband is not acceptable that the wife was reluctant to have sexual intercourse with her husband. She has also pointed out that no iota of evidence is placed on record to prove the contention of termination of pregnancy by the wife. She submits that the petitioner / husband himself deserted his wife and he never tried to fetch her. According to learned Counsel for respondent / wife, this petition is filed only to avoid the payment of maintenance awarded under D.V. Act.

9. Learned Counsel for the petitioner / husband submits that even in the written statement the respondent / wife nowhere pleaded that she was willing to cohabit with her husband. He has drawn our attention to the copy of F.I.R. and submitted that the F.I.R. is sufficient to prove that respondent /wife and her brother assaulted the petitioner / husband by sharp weapon and this indicates the nature of respondent / wife. He submits that as the respondent / wife left her matrimonial home on her own accord without any reasonable cause, the trial Court rightly awarded the decree of divorce on the ground of desertion. He submits that behaviour of respondent / wife itself amounts to cruelty.

10. After hearing learned Counsels for both the parties, following points arise for our consideration and we have recorded our findings against those points for the reasons stated below. 1 Does the petitioner / husband prove :- No. that after solemnization of the marriage he was treated by his wife

with cruelty?

2 Does the petitioner / husband prove :- The desertion by that his wife deserted him for wife is not proved. continuous period not less than two years immediately preceding the presentation of petition for divorce?

3 Whether the judgment and decree :- No. passed by the trial Court just and proper?

4 What order? :- The appeal is allowed. Divorce decree is set aside.

REASONS AS TO POINT NOS.1 TO 4 :-

11. In the case at hand, the divorce is claimed on the ground of cruelty to the husband at the hands of his wife and desertion by wife. To prove the allegation of cruelty, the petitioner / husband stepped in witness box and by filing affidavit in lieu of examination-in-chief, reproduced all the contents of his pleading. About mental cruelty at the hands of wife, the contention of petitioner / husband is that the respondent / wife terminated her 3 to 4 months' pregnancy in the hospital of Dr. Pansare at Osmanpura, Aurangabad i.e. behind the back of her husband. However, to substantiate this serious allegation, neither Dr. Pansare is examined by the petitioner / husband nor he has taken pains to call the record from the hospital of Dr. Pansare to prove the correctness of this allegation. Otherwise also, it is very hard to accept that while cohabiting with the husband, wife can secretly terminate her pregnancy without knowledge of her husband. Thus, the main allegation levelled by petitioner / husband against his wife is not established. But obviously this allegation is nothing but a false charge against the wife.

12. The general contention of the petitioner / husband is that, after the marriage his wife started quarreling with him for trifling reasons and she was not ready to do day-to-day household work as well as she behaved arrogantly with him and with his relatives. However, it cannot be ignored that wear and tear dispute in between the husband and wife is a part of married life.

Therefore, such trifling disputes in between the husband and wife cannot be considered as cruelty to the husband. So also the reluctance to perform household work or arrogance in behaviour of wife also does not amount to cruelty to husband to ask for decree for divorce. Moreover, it cannot be ignored that according to the petitioner/husband, he cohabited with his wife at Aurangabad and other different places since the date of marriage i.e. since 07.03.2002 till year 2008. Petitioner / husband nowhere deposed that he himself was doing the household work during the period of these six years. Therefore, obviously contention of the petitioner / husband is not acceptable that his wife was reluctant to do the household work. Otherwise also, no relative of the petitioner / husband or any neighbour is examined by petitioner / husband to prove the arrogant behaviour of the wife. Otherwise also, these allegations are general allegations and he has not proved any specific instance of arrogant behaviour or insulting treatment to him by his wife. Therefore, we have no hesitation to

hold that considering the length of cohabitation in between the petitioner / husband and respondent / wife, this second allegation regarding continuous dispute in between husband and wife and mis-behaviour at the hands of wife are not proved by the husband.

13. Next contention of the petitioner / husband is that, his wife did not like him and she was not willing to cohabit with him. He also added additional allegation that his wife was reluctant to have sexual relations with him. However, it cannot be ignored that this couple was blessed with two daughters. This fact falsifies the contention of petitioner / husband regarding reluctance of his wife to have sexual intercourse with him as well as her dislike towards her husband. Even the allegation of petitioner / husband is absolutely false that his wife was not ready to cohabit with him for the simple reason that when in cross-examination the petitioner / husband was asked about his ready and willingness to cohabit with his wife, he flatly refused his willingness of cohabitation with his wife. On the other hand, the respondent / wife in her pleading as well as in examination- in-chief has made her intention clear that even during pendency of divorce petition she was ready and willing to cohabit with her husband. Otherwise also, compromise by respondent / wife with her husband in Restitution of Conjugal Rights proceeding as well as resumption of cohabitation by submitting application to Jawahar Nagar Police Station on 22.10.2007 (para 7 of the petition) clearly indicates the intention of respondent / wife to cohabit with her husband. Though the petitioner / husband contended that with his relatives he tried to fetch his wife from her parental home, to substantiate this contention no relative is examined by the petitioner / husband who accompanied him. Thus, the admission given by petitioner / husband in para-5 of his cross-examination that he is not ready to cohabit with his wife, is sufficient to hold that respondent / wife was all along willing to cohabit with her husband, but the husband is guilty of refusal for cohabitation with his wife.

14. Another important aspect is that the petitioner / husband (PW-1) has admitted in his cross-examination that he has not issued any notice to his wife calling her for cohabitation. He has also admitted that he has not taken any decision regarding his daughters. This clear admission shows that the petitioner / husband is guilty of desertion to his wife and children without any reasonable cause.

15. Other contention of the petitioner / husband is that, his wife was insisting him to live separate from his parents and she frequently visited her parental home and stayed there as per her sweet wish. However, it cannot be ignored that frequent visit to the parental home by wife and her stay there does not amount to any type of cruelty to her husband. So also, except bare allegation, no other reliable evidence has been placed on record by petitioner / husband to prove that his wife was insisting him to live separate from his parents.

16. Another serious allegation against the respondent / wife is that, on 21.03.2004 the respondent / wife and her brother assaulted the petitioner / husband by sharp cutting weapon. To substantiate this contention the petitioner / husband has placed on record copy of F.I.R. lodged to Police Station, Mukundwadi dated 21.03.2004. However, this F.I.R. as well as the copy of injury certificate is not at all proved by petitioner / husband by examining the concerned Police Officer and Medical Officer. Otherwise also, after going through this F.I.R., falsity of the contention of the petitioner / husband

has come to our notice. In the F.I.R. he has mentioned that his wife twisted his both testicles by holding it in her hand and when his friend Mangesh Hiwrale tried to rescue him, that time his friend was also assaulted by his wife and her brother. The F.I.R. does not speak regarding exact nature of the so called sharp cutting weapon used by respondent / wife and her brother. The use of sharp cutting weapon is absolutely vague. Even the Medico-legal- Certificate does not show any injury on the body of petitioner / husband due to sharp cutting weapon. Thus, even this injury certificate does not support contention of the petitioner / husband that he was assaulted by his wife and her brother by sharp cutting weapon. Thus, obviously this allegation is also absolutely false and not acceptable.

17. Petitioner / husband has also alleged that his wife lodged false complaint against him to Women Redressal Forum. Even the trial Court has given much importance to this allegation. However, only because after filing the complaint to Women Redressal Forum, the matter was settled in between the parties and they started cohabitation at village Wasadi, it cannot be inferred that that complaint of respondent / wife was false.

18. Though the petitioner / husband contended that when the wife was pregnant for second time on 12.06.2008, she went to her parental home after quarreling and since then she is residing at her parental home without reasonable cause. However, the petitioner / husband has not brought on record any independent evidence to prove the so called quarrel in between him and his wife. Otherwise also, if this evidence is weighed on the scale of preponderance of probability, it is not probable that without any reasonable cause respondent / wife would live separate from the husband at her parental home when she has responsibility of two minor daughters. On the other hand, as observed above, the respondent / wife was all along ready to cohabit with the husband, but the petitioner / husband refused to cohabit with his wife even at the stage of recording of his evidence in divorce petition. Filing of petition for Restitution of Conjugal Rights is nothing but a farce to show his bonafide, in the light of admission given by petitioner / husband in his cross- examination that he is not ready to cohabit with his wife. In the circumstances, we have no hesitation to hold that the husband has miserably failed to prove that he was subjected to cruelty by his wife within the meaning of Section 13 (1) (ia) of the Hindu Marriage Act. So also the petitioner / husband failed to prove that his wife deserted him without reasonable cause. On the other hand, the evidence placed on record is sufficient to hold that the petitioner / husband is guilty for desertion of his wife. In the circumstances, the learned trial Court is not justified in passing the decree for divorce against the respondent / wife. We hold that this appeal needs to be allowed to set aside the decree for divorce passed by the Judge, Family Court, Aurangabad.

19. In the result, Family Court Appeal No.42 of 2018 is allowed with cost. The decree passed by the learned Judge, Family Court, Aurangabad in Petition No. A-142/2016 for dissolution of marriage is set aside and Petition No.A- 142/2016 is dismissed with costs.

20. Civil Application No.5600 of 2018 for stay is disposed of accordingly.

(SUNIL K. KOTWAL)
JUDGE

(T.V. NALAWADE)
JUDGE

vdd/

